

Goa, Daman and Diu Treasure-Trove Rules, 1975

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Daman and Diu - Act

Goa, Daman and Diu Treasure-Trove Rules, 1975

DAMAN AND DIU

India

Goa, Daman and Diu Treasure-Trove Rules, 1975

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Goa, Daman and Diu Treasure-Trove Rules, 1975

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No. In exercise of the powers conferred by section 19 of the Indian Treasure-trove Act, 1878 (IV of 1878), the Lieutenant Governor of Goa, Daman and Diu is pleased to make the following rules, namely:-

1.

Short title, extent and commencement.

(1)

These rules may be called the Goa, Daman and Diu Treasure-Trove Rules, 1975.

(2)

They extend to the whole of the Union territory of Goa, Daman and Diu.

(3)

They shall come into force at once.

2.

Definitions.

- In these rules unless the context otherwise requires:-

(a)

"Act" means the Indian Treasure-trove Act, 1878 (VI of 1878);

(b)

"Government" means the Government of Goa, Daman and Diu;

(c)

"Section" means a section of Act;

(d)

"Superintending Archaeologist" means Superintending Archaeologist, Archaeological Survey of India, Government of India, within whose jurisdiction the treasure has been found;

(e)

"Treasure-trove Officer" means the Director of Archives, Government of Goa, Daman and Diu.

(f)

"Union territory" means the Union territory of Goa, Daman and Diu.

3.

Collector's Report.

- On receipt of any notice under section 4, or on receipt of information from any person other than the finder, that a treasure has been found, the Collector shall report the fact to the Government, the Superintendent and the "Treasure-trove Officer" stating as far as the information at his disposal permits:-

(a)

the name of the finder,

(b)

the nature and details of treasure,

(c)

the approximate value of the treasure,

(d)

the date of the finding of the treasure,

(e)

the origin and surrounding of the treasure.

4.

Publication of Notification.

- Every notification under clause (a) of section 5 shall be published at the local police station, at the Office of the Collector or equivalent Officer within whose jurisdiction the treasure was found, and also at some conspicuous spot in the village in which it was found.

5.

Report of the Treasure-trove Officer and Superintendent within 60 days of the receipt of such information from the Collector, the Treasure-trove Officer and Superintendent shall arrange for inspection of the treasure and shall submit their report, individually or jointly to the Collector whether the treasure or any part thereof should be acquired by the Government.

6.

Acquisition of Treasure.

(1)

The Collector shall, before acquiring or making a declaration under section 16 of his intention to acquire on behalf of the Government any treasure or any part thereof, obtain the orders of the Government.

(2)

If the Government decides to acquire such treasure or any part thereof, whether on report of the Treasure-trove Officer and Superintending Archaeologist or otherwise, the Government shall accordingly inform the Collector, who after making the declaration under section 9 and complying with provision of section 16, shall as soon as possible, forward the treasure or any part thereof so acquired either to the Treasure-trove Officer or any other centre which the Government

may specify in this behalf.

7.

Distribution of Treasure.

- The Treasure-trove Officer, in the event of the Government deciding to acquire the treasure or any part thereof, shall recommend to Government its distribution among the Museums and Institutions in the following order of priorities:-

(a)

Principal Museum of the Union Territory and National Museum in recommending allocations to the Museum of Union territory, the Treasure-trove Officer shall take into consideration that the objects to be given to the Museum of the Union territory are of Union territory or regional interest and those to be given to the National Museum are of national importance.

(b)

Other Museums in the Union territory managed by the Government or other public authorities, including Universities in the Union territory.

(c)

Principal State Museums of other States and the Indian Museum Calcutta.

(d)

Other Museums of other States maintained by the Government or other Public authorities, including Universities.

(e)

Other Museums.

8.

Sale.

- The Government, after assessing the needs of the Museums and institutions mentioned in rule 7, may in consultation with the Treasure-trove Officer and the Superintending Archaeologist place a part of treasure acquired under sub-rule (2) of rule 6 or otherwise for sale to the public after notifying the proposed sale in such manner as it may deem fit.

9.

Price.

- The price of the finds notified for sale shall be fixed by the Government after consulting the Treasure-trove Officer and the Superintendent and shall be specified against each item in the notification of the proposed sale and the amount realised by such sale shall be credited to the Consolidated Fund of the Union territory.

10.

Returns.

- The Treasure-trove Officer shall send a consolidated report of the treasure found during the financial year to the Government of India, Department of Culture, Ministry of Education, Social Welfare & Culture, this report shall include a brief summary of the results of the examination of Treasure-trove finds during the year under review, and shall also include their classification by their material and roughly by the class to which they belong. The report shall also give a short account of any notable Treasure-trove finds and their distribution during the year.

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